



Maritime &
Coastguard
Agency

Guidance

MGN 708(M) Guidance on the merchant shipping international safety management regulations

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Summary

This notice sets out guidance and instructions regarding International Safety Management and the application of the Merchant Shipping International Safety Management Regulations 2026.

1. Introduction/background

1.1 This Marine Guidance Note relates to the Merchant Shipping (International Safety Management (ISM) Code) Regulations 2026, hereafter referred to as “the regulations”, which have replaced Regulation (EC) 336/2006 and the Merchant Shipping (International Safety Management (ISM) Code) Regulations 2014 with effect from 31st March 2026. This means that the legal requirements on compliance with the International Safety Management Code (ISM Code) are now contained in a single set of Regulations.

1.2 The Regulations address certain gaps which arose in the previous legislation as a result of the UK leaving the EU, which were not addressed at the point of EU Exit. They also remove references to EU law and redundant EU-specific provisions. The scope of the Regulations is broadly similar to the previous legislation, as originally adopted when the UK was an EU member state, but the following points are clarified:

1.2.1 That ro-ro passenger ferries, which operate in categorised waters as defined within MSN 1837(M) Amendment 3 (or subsequently amended), are in scope of the legislation (this also continues to be the case for passenger high-speed craft). Other types of passenger ships continue to be in scope unless they only operate in sea areas C or D or Categorised Waters, in which case they will need to comply with DSM.

1.2.2 That UK-flagged ships falling within regulation 5(1)(a) of the Regulations, and not excluded by regulation 5(2), are subject to the Regulations irrespective of whether they engage solely on domestic voyages within the territorial waters of another State.

1.2.3 The Secretary of State may issue an exemption against any requirements or under Regulation 6 of the regulations, provided this does not contravene SOLAS and it is either impractical or unreasonable for the vessel in question to meet the requirement(s).

1.3 Importantly, the Regulations do not alter the requirements of the ISM Code. The existing safety management systems, audits (also referred to as “verifications”), and certification duties remain unchanged. However, the procedures for these are set out in more detail in the Regulations, bringing them into line with the approach under other more recent sets of Merchant Shipping Regulations which implement SOLAS survey and certification obligations, such as the Merchant Shipping (Survey and Certification) Regulations 2015 as amended.

1.4 This notice provides additional guidance and UK interpretation of the ISM Code requirements.

2. The UK Policy

2.1 The Maritime and Coastguard Agency (MCA) recognises the importance of the ISM Code in encouraging an enhanced safety and pollution prevention culture within the shipping industry. Therefore, the MCA, as the UK Flag State Administration, has retained direct responsibility for the assessment and audit of UK shipping companies and ships against the ISM Code, subject to the arrangements set out in Section 4 in respect of multi-flagged fleets. All UK-flag vessels are expected to have the Safety Management System (SMS) Manual written in or translated into English to enable MCA Auditors to conduct audits.

3. ISM Code Declarations of ISM Company

3.1 In accordance with regulation 8 of the regulations, where the ISM company responsible for the operation of any United Kingdom ship is not the owner, the owner must notify the full name and details of that ISM company to the MCA.

3.2 To fulfil the above requirement, the ISM company should ensure that the notification has been made, and this shall be achieved by completing MSF1924 - ISM Company Declaration. The form is available from the UK Customer Maritime Service or your Customer Service Manager (CSM).

3.3 Any changes to the reported information must be updated accordingly by submitting a revised form.

3.4 Where applicable, the ISM company should maintain records of the ISM Company Declaration as objective evidence for audit purposes. Verification may also be undertaken on board through the Continuous Synopsis Record (CSR), where applicable and available.

4. Companies operating multi-flagged fleets

4.1 When an ISM Company operates a multi-flagged fleet, it should submit a single proposed audit plan to all relevant Flag Administrations and secure their consensus before any audits occur. The plan should follow IMO MSC/Circ. 762 (Guidelines to Companies operating multi-flagged fleets and Supplementary Guidelines to Administrations). Each Flag State will then issue its own Document of Compliance (DOC) for the ships flying its flag.

4.2 Notwithstanding the MCA's direct responsibility, outlined in section 2, for ISM companies operating UK-flagged ships, under which the MCA typically carries out the DOC audit, where an ISM Company operates UK flagged ships that form only a minor proportion of a multi-flagged fleet, the MCA may, by prior agreement, delegate the DOC audit to another Flag State or a Recognised Organisation (RO) authorised to act on the MCA's

behalf. If any ship in the fleet is a passenger vessel, the MCA will always conduct the DOC audit.

4.3 Notwithstanding the MCA's direct responsibility outlined in section 2, for ISM companies operating UK-flagged ships on the Enhanced Authorisation Safety System (EASS), that form only a minor proportion of a multi-flagged fleet, the MCA will carry out the initial and renewal DOC audits but may by prior agreement, delegate the annual DOC audits to another Flag State or RO authorised to act on its behalf.

5. Authorisations for Delegated Audits

5.1 The MCA must formally authorise any delegation of audits to another Flag State or Recognised Organisation.

5.2 For ships operating under the EASS, this authorisation is provided through the Enhanced Authorisation Safety Certificate (EASC) and agreement between MCA and the applicable Recognised Organisation.

5.3 In all other cases, the MCA will issue an instrument of appointment to authorise the delegation, which shall be arranged through the CSM.

5.4 Any delegation of audits under section 4 to another Flag State or Recognised Organisation will be considered on a case-by-case basis and should not be considered as guaranteed.

6. Conduct of SMC Audits and Operational Considerations

6.1 Safety Management Certificate (SMC) audits should not be carried out when the vessel is in dry dock or undergoing an extensive refit, as the ship is not considered operational.

6.2 Where possible, audits should not be planned to coincide with crew changes, especially when this involves senior management personnel.

6.3 Cooperation between the ISM Company/ships & MCA is essential to establish a convenient audit plan for all parties involved. Sufficient time must be allocated to conduct a thorough and effective audit.

7. General Inspection and Drill

7.1 Normally, a General Inspection (GI) will be conducted alongside each SMC audit, including interim audits. To support this process, companies should ensure that relevant records are available for review, including previous MCA inspection reports, noted deficiencies, and Port State Control inspection findings. These provide essential context on the vessel's compliance history.

7.2 It is MCA policy that an emergency drill shall be conducted during the SMC audit. This is particularly important for vessels, which MCA surveyors may not visit for up to three years.

7.3 For passenger ships that undergo an annual Passenger Safety Certificate Survey, if an MCA surveyor witnessed an emergency drill within the previous 12 months and suitable evidence is provided, the requirement to conduct a drill during the SMC audit may be waived.

7.4 For all other ship types, an emergency drill is expected to be carried out during the SMC audit. ISM Companies should be aware of this requirement and make appropriate arrangements in advance to facilitate the drill.

8. Laid Up Ships

8.1 A ship is considered to be in lay-up when it has ceased trading for a period for commercial or other reasons and the ISM Company has notified the MCA and recognised organisation accordingly.

8.2 Hot lay-up refers to a condition where machinery and essential equipment are maintained to enable the vessel to become fully operational within 24 hours.

8.3 Cold lay-up means the ship is shut down, with machinery and systems preserved for an extended out-of-service period.

8.4 The scope and depth of an ISM audit during or following lay-up will depend on the duration and type of lay-up. The following table outlines how audit requirements and the validity of the SMC may be affected:

Lay-up Mode	Lay-up Period	SMC Status	Audit Requirement
Hot	< 3 months	As in operation	Not required
	3–12 months	To be revalidated	Additional (initial scope)
	> 12 months	Invalid	Interim
Cold	< 3 months	To be revalidated	Additional (initial scope)
	> 3 months	Invalid	Interim

8.5 After the required shipboard audit is satisfactorily completed, the SMC should be either endorsed or reissued as per the above table.

8.6 As an exception, where a ship operates on a seasonal or intermittent basis, such as seasonal passenger vessels or ships engaged in project-based or contract-specific work, the Company should ensure that the SMS includes appropriate procedures for lay-up and reactivation. These procedures should reflect the ship's operational profile and commercial activities.

9. Voluntary Application

9.1 The ISM Code can be applied to all ships, even those not required to comply with it. This means shipowners can voluntarily adopt the Code's requirements to improve safety and operational management, regardless of regulatory obligations. Voluntary compliance can be a way for companies to demonstrate a commitment to high safety standards and best practices in ship management.

9.2 Where a company voluntarily implements the ISM Code on its vessels, audit, certification, and compliance will be treated in line with the requirements set out in the regulations and this notice, as appropriate.

10. Categorised Waters

10.1 With the exception of ro-ro passenger vessels and high-speed passenger craft, the regulations do not apply to passenger or cargo vessels of any tonnage, certificated for operation exclusively in Categorised Waters as defined in MSN 1837(M) as amended. Categorised Waters do not count as “sea” for the purposes of merchant shipping legislation.

10.2 Vessels within the scope of the regulations and which are certified for operation at sea must continue to comply with the regulations, irrespective of whether they undertake any voyages from time to time within Categorised Waters.

More information

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